

IN THE CIRCUIT COURT OF THE THIRD JUDICIAL
DISTRICT OF LAFAYETTE COUNTY, MISSISSIPPI

LAFAYETTE COUNTY
FILED

STATE OF MISSISSIPPI

PLAINTIFF

JUN 15 2023

VS

no. LK22-358

JEFF BUSBY
CIRCUIT CLERK

BY: JF DC

MATTHEW REARDON

DEFENDANT

TRANSCRIPT OF THE REVOCATION HEARING HAD AND DONE IN THE
ABOVE STYLED AND NUMBERED CAUSE, BEFORE THE HONORABLE GRAY
TOLLISON CIRCUIT JUDGE, ON THE 3RD DAY OF NOVEMBER, 2022

APPEARANCES:

Present and representing the Plaintiffs:
Honorable Tiffany Kilpatrick Assitant District Attorney
Oxford, MS

Court Reporter Margaret Fair, CSR 1016

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1 BY THE COURT: Mr. Reardon. Why don't
2 you come up here to the podium. I am going to
3 call up the case of State of Mississippi
4 versus Matthew Reardon. This is LK 22- 358.
5 I don't know if we need to but let's get you
6 sworn in.

7 MATTHEW REARDON

8 upon being called to testify as a witness on
9 behalf of the Defendant, after having been
10 first duly sworn, testified as follows,
11 to-wit:

12 BY THE COURT: Mr. Reardon, you were here and being
13 detained because there has been in your case file a motion to
14 revoke your probation, your suspended sentence and hold you
15 until a hearing on that matter okay. Now, what I want to do
16 is give you an attorney, appoint an attorney for you. And I
17 am going to have to put this off until next week. As soon as
18 we can. Thursday at 10:00 am.

19 BY MR. REARDON: Can I speak?

20 BY THE COURT: This is the only thing
21 that is pending here is the motion to revoke
22 your probation and your suspended sentence.
23 You are entitled to have a hearing if you want
24 to but I'm also going to make sure you have an
25 attorney with you.

26 BY MR. REARDON: I waive counsel, Your
27 Honor. I would like to proceed today. I was
28 advised I was having a hearing today. I waive
29 counsel.

1 BY THE COURT: Well, I would feel more
2 comfortable if you have an attorney with you.

3 BY MR. REARDON: I waive counsel, Your
4 Honor.

5 BY THE COURT: You want to waive your
6 counsel and you want to proceed?

7 BY MR. REARDON: Yes, Your Honor.

8 BY MRS. KILPATRICK: Sure, Your Honor.
9 May I have just a few moments.

10 BY THE COURT: Hold on a second.

11 BY MR. REARDON: May I speak.

12 BY THE COURT: I want to make sure you
13 understand just any type of proceeding it is
14 better to have counsel and the likelihood of
15 success on the merits is better if you have
16 counsel advising you; you understand that?

17 BY MR. REARDON: Yes, Your Honor.

18 BY THE COURT: Knowing that, do you still
19 wish to not have counsel?

20 BY MR. REARDON: Yes, Your Honor.

21 Your Honor, if I may speak?

22 BY THE COURT: Let me go through this
23 first and I will recognize you to speak.

24 BY MR. REARDON: Yes, sir. I did enter
25 --I am going to let the court know I did enter
26 a motion on the 31st. It was filed in the
27 Circuit Court down stairs. There has been
28 absolutely no mention of that motion.

29 BY THE COURT: That will be taken up in

1 the same manner as any other defendant filing
2 that it will be ruled upon but we are not
3 taking that up today.

4 BY MR. REARDON: I want it before the
5 court because it is very odd the very next day
6 after I filed that motion this revocation
7 motion is filed by the prosecutor.

8 BY THE COURT: That is dually noted. Just like I
9 said any other defendant that will be processed by the court
10 in the appropriate manner. Let's go through the facts in
11 this case. Mr. Reardon was indicted on September 6, 2022 by
12 Lafayette County Grand Jury for the crime of Aggravated
13 Stalking. Mr. Reardon pled guilty to the crime of Aggravated
14 Stalking on September 30th of 2022 before Judge Kent Smith.
15 That sentence was five years and five years suspended and he
16 was placed on five years of unsupervised probation. In
17 addition there were other terms of this sentence. Judge
18 Smith imposed and banished from Lafayette County for five
19 years. Allow the current address 45 days. Given time to
20 relocate from September 30, 2022 and no contact with the
21 Tannehill family and the court will retain a 365 day Right of
22 Review. You are also ordered to pay court cost \$842.50.
23 Again that was September 30th. And we referenced this
24 earlier it is in your file your motion to withdraw your
25 guilty plea.

26 BY MR. REARDON: That is exactly the
27 reason why I waived right to counsel because
28 my counsel was not counsel and that is
29 detailed out in my motion to withdraw the

1 guilty plea.

2 BY THE COURT: And as we are here this was a motion
3 to revoke your probation and your suspended sentence and the
4 allegations in this motion are following; that the defendant
5 immediately violated terms of sentence on both September
6 30th, 2022 and October 3rd. The undersigned Assistant
7 District Attorney Ms. Kilpatrick contacted the defense
8 counsel and asked if they both return to the courthouse where
9 Circuit Court was in term so the court could remind again and
10 explain to the defendant that he was not permitted
11 unauthorized movement about the City of Oxford or Lafayette
12 County. No revocation proceedings were initiated at that
13 time. Then the additional allegation was that undersigned
14 counsel had been notified by both law enforcement and private
15 citizens that the defendant presented himself in the City of
16 Oxford on Friday October 28, 2022 and Monday October 31st,
17 2022 for unauthorized and unscheduled purposes in violation
18 of the order of banishment. Specifically, Mr. Reardon
19 presented himself at the local Federal Bureau Investigation
20 Office on Friday October 28 and then in Shelby's Place, a
21 residential neighborhood on the evening of October 31st, 2022
22 either which violates the terms of his probation. The State
23 is moving this court to revoke the defendants probation based
24 on the violation of the banishment. So if these allegations
25 are true, Mr. Reardon, then you failed to live at liberty
26 without violating the law and are in violation of the terms
27 and conditions of your unsupervised probation. The court
28 will not take any action against you unless one of two things
29 happens. You admit these violations that I just read to you

1 about violating conditions of your unsupervised probation
2 regarding the banishment or the state can prove it's more
3 probable than not that you violated the terms of your
4 unsupervised probation. So my question to you is do you
5 admit that you violated the terms and conditions of your
6 probation?

7 BY MR. REARDON: Not at all. There was
8 no violation, no sir.

9 BY THE COURT: You do deny it?

10 BY MR. REARDON: I actually contacted
11 pursuant to the court I contacted Deputy
12 Kandace Beavers to ask permission to actually
13 come up town and meet with the FBI on the
14 referenced date. The call is recorded. I did
15 exactly what the court asked me to do on that,
16 Your Honor.

17 BY THE COURT: Why don't you be seated
18 and we will ask the State, since you have
19 denied it, we will allow the State to present
20 their evidence in support of their motion.
21 Let me say this too, you are entitled to cross
22 examine any witnesses that the State calls.
23 You understand that?

24 BY MR. REARDON: Yes, Your Honor.

25 BY THE COURT: Okay. All right. And I
26 will call you at the appropriate time. At
27 this time I'll recognize the State to call
28 their first witness in support of their
29 motion.

1 BY MRS. KILPATRICK: The State calls
2 K-A-N-D-Y Beavers.

3 KANDY BEAVERS

4 upon being called to testify as a witness on
5 behalf of the State, after having been first
6 duly sworn, testified as follows, to-wit:

7 DIRECT EXAMINATION BY MRS. KILPATRICK:

8 Q. Deputy Beavers, have you had an occasion to meet with
9 Matthew Reardon prior to today?

10 A. No.

11 Q. Have you talked to him on the phone prior to today?

12 A. Yes, ma'am, I have.

13 Q. We will be careful not to speak over each other. Mrs.
14 Fair has got to take everything down. So when I finish a
15 question you can answer. We will get use to it. So if you
16 are familiar with speaking to Matthew Reardon on the phone?

17 A. Yes, ma'am.

18 Q. Why would you and Matthew Reardon be speaking over the
19 telephone?

20 A. He contacted the Sheriff's Department on October 28 of
21 2022.

22 Q. That is last Friday?

23 A. Yes, ma'am. And I spoke with him on the phone.

24 Q. Okay. What was the substance or what did you all talk
25 about on the phone?

26 A. He called advising that he needed to come into the City
27 of Oxford to meet with an FBI agent and that he was
28 reporting that he was coming into the city.

29 Q. Okay. So he claimed that he was reporting to you that

1 he was coming into the City of Oxford to meet with an FBI
2 agent?

3 A. Yes, ma'am.

4 Q. What happened next?

5 A. He said that they had contacted him and that he had to
6 be up there and it needed to be before lunch.

7 Q. What time was it then?

8 A. This was around 10:40.

9 Q. 10:40. What happened next?

10 A. I asked Matt was there any other place that he needed
11 to go or did he plan on going and he said he wasn't sure.
12 He might have to go to I think he said District Court. I'm
13 not a hundred percent sure about that but he did say he was
14 going to the FBI building. After speaking with Mr. Reardon
15 on the phone I then went and spoke with, I reported it to
16 Sheriff Joey East and a phone call was made to the FBI
17 Building.

18 Q. And once you all contacted the Federal Bureau of
19 Investigation what did you learn at that point?

20 A. That Mr. Reardon did not have an appointment.

21 Q. Okay, so he lied?

22 A. Yes.

23 BY MR. REARDON: Objection, Your Honor.

24 BY THE COURT: The rules of evidence do
25 not apply to the revocation proceeding.

26 Q. So during the phone call to the FBI you learned, number
27 one, that he wasn't telling the truth about there being a
28 meeting that day with the FBI?

29 A. Correct.

1 Q. What else did you learn during that phone conversation
2 with the FBI?

3 A. That a male subject had called to the building advising
4 that he needed to come up there and he would not give his
5 name.

6 Q. That he needed to come up there. Where was that
7 individual when he called the FBI?

8 A. I'm not sure.

9 Q. What happened next? What did you learn next I should
10 say?

11 A. Can I look back at my report?

12 Q. Yes, to refresh your recollection.

13 BY MRS. KILPATRICK: Your Honor, if I may
14 approach. I'm handing Deputy Beavers her
15 report.

16 A. I contacted Mr. Reardon and asked him who the FBI agent
17 was that he was going to speak with and he told me that that
18 was not my business.

19 Q. Okay. So once you talked with the FBI you then called
20 Mr. Reardon back?

21 A. Yes, ma'am, I spoke with Mr. Reardon several occasions
22 that day on the phone.

23 Q. So, did he or did he not, Mr. Reardon, show up at the
24 FBI building in Oxford?

25 A. Yes, he did.

26 Q. He did show up at the FBI building?

27 A. Yes, sir.

28 Q. What time did he show up at the FBI building?

29 A. I'm not sure when I speak with him that afternoon about

1 he had been to the FBI building it was 2:30.

2 Q. Did he have permission to go to the FBI building?

3 A. No ma'am. He did not have an appointment.

4 Q. So he was unauthorized visiting a place in Oxford,
5 Mississippi?

6 A. Correct.

7 Q. The FBI building is in the City of Oxford?

8 A. Correct.

9 Q. I have handed you just to refresh your recollection
10 your report but I'm going to ask you to take a look at that
11 and tell me does that seem to be an accurate depiction of
12 your own report that you made?

13 A. Yes, sir, it is.

14 BY MRS. KILPATRICK: At this time I move
15 it into evidence as exhibit 1.

16 BY THE COURT: Any objection?

17 BY MR. REARDON: No objection. Can I get
18 a copy of the report for my self?

19 BY THE COURT: We will make a copy.

20 (SAID DOCUMENT WAS MARKED AS EXHIBIT 1
21 AND RECEIVED INTO EVIDENCE)

22 Q. One final question for now. Just to be clear Mr.
23 Reardon had no authorization to be at the FBI building that
24 is here in the City of Oxford on Friday October 28?

25 A. Correct.

26 BY MRS. KILPATRICK: No further
27 questions, Your Honor.

28 BY THE COURT: You may question the
29 witness. And I would like to forewarn you

1 please be respectful.

2 BY MR. REARDON: Yes, Your Honor. Of
3 course.

4 CROSS EXAMINATION BY MR. REARDON:

5 Q. Deputy Beavers, you were advised beforehand prior to
6 even the call being made that I was only authorized to go to
7 Oxford if I alerted the sheriff's Department in advance of
8 my presence; is that correct?

9 A. Yes.

10 Q. And you did in fact receive a call from me on the 28th
11 asking for, better yet, alerting the Sheriff's department
12 that I had particular business at the FBI building in
13 Oxford?

14 A. Correct.

15 Q. Going further into that topic you had asked what the
16 business was and I had advised over the phone that it was
17 not the Sheriff's department business to know exactly what I
18 needed to meet with the FBI about; correct?

19 A. I asked you who the agent was.

20 Q. Okay. Would it be much of a surprise if I didn't even
21 know who the agent was when ever spoke to them over the
22 phone I said something that is normally disclosed from the
23 FBI whenever a call is made.

24 A. I'm sorry say that again.

25 BY THE COURT: You will be able to
26 testify and I will give you that chance at the
27 end. If you want to make your own statement
28 on your behalf.

29 BY MR. REARDON: I certainly do.

1 BY THE COURT: If you want to ask
2 questions you can ask questions.

3 Q. Do you recall a second phone call being made that day
4 after I had traveled to the FBI building?

5 A. I do.

6 Q. Approximately how much later was it or how long after?

7 A. I don't know what time you got to the FBI building but
8 the call came in around 2:40 or 2:50 I was doing Lafayette
9 County traffic and that is when I spoke with you on the
10 phone.

11 Q. What was the substance of that call?

12 A. You advised that they had wasted your time after
13 calling you to come up there and they would not see you is
14 what you said.

15 Q. And was anything said on the phone call?

16 A. You said you were leaving to go file a grievance. You
17 were going to another, I can't remember where you said you
18 were going but you were going somewhere else. Okay.

19 BY MR. REARDON: No further questions.

20 BY THE COURT: Any redirect from the
21 state?

22 BY MRS. KILPATRICK: No, Your Honor.

23 BY THE COURT: All right. Deputy Beavers,
24 you may stand down.

25 Call your next witness for the State.

26 BY MRS. KILPATRICK: Your Honor, the State
27 would call Emily Frye F-R-Y-E.

28 EMILY FRYE

29 upon being called to testify as a witness on

1 behalf of the State, after having been first
2 duly sworn, testified as follows, to-wit:

3
4 DIRECT EXAMINATION BY MRS. KILPATRICK:

5 Q. You live here in Lafayette County?

6 A. Yes, ma'am.

7 Q. Where do you live? You don't have to give me the
8 specific address?

9 A. It's well the subdivision is my dads address in
10 Shelby's Place.

11 Q. Where?

12 A. Shelby's place.

13 Q. S H E L B Y'S Place?

14 A. Yes, ma'am.

15 Q. And that is located in Lafayette County?

16 A. Yes, ma'am.

17 Q. Where were you on October 31st, Halloween?

18 A. It was at my dads at Shelby's Place.

19 Q. You were at your dads. I thought it was yours but it
20 was your father's house?

21 A. Yes, ma'am.

22 Q. I assume everybody is trick or treating?

23 A. Yes, ma'am.

24 Q. Did you see anybody there that you took note of while
25 you are helping with the trick or treaters?

26 A. Yes, ma'am. We saw a vehicle going by slowly.

27 Q. What kind of vehicle?

28 A. A black Chevrolet Equinox.

29 Q. What happened next?

1 A. The interior lights were on in the vehicle and I looked
2 up and I saw him and it was Matthew Reardon.

3 Q. You knew for a fact that was Matthew Reardon?

4 A. Yes, ma'am.

5 Q. How were you so quickly able to identify because the
6 lights were on that it was in fact Matthew Reardon. How do
7 you know Matthew Reardon such that you can identify him?

8 A. I have known him for a long time.

9 Q. Just from living here?

10 A. Yes, ma'am.

11 Q. So have you known --how old are you around about?

12 A. I'm 31.

13 Q. So you have known about him your whole life?

14 A. I knew him before I even started at the Sheriff's
15 Department.

16 Q. You work at the Sheriff's department? Are you a
17 Deputy?

18 A. No ma'am.

19 Q. What's your job?

20 A. Still a jailor but right now I'm at the front desk as a
21 records clerk. I have been up there for a year.

22 Q. Have you had an occasion in your job to meet up with
23 Mr. Reardon?

24 A. No ma'am.

25 Q. You only know him personally outside of the office?

26 A. Yes, ma'am.

27 Q. Very good. So if you had to guess were you 100 percent
28 sure it was Matthew Reardon in that black Chevy Equinox?

29 A. Yes, ma'am.

1 Q. And that is in Shelby's Place your dad's house?

2 A. Yes, ma'am.

3 Q. This past Halloween?

4 A. Yes, ma'am, around 7:40 p.m.

5 BY MRS. KILPATRICK: No further
6 questions.

7 BY THE COURT: Again Mr. Reardon, you may
8 cross examine the witness.

9 CROSS EXAMINATION BY MR. REARDON:

10 Q. When was the last time that we have had any contact?
11 You have seen me outside of the one or two times that I have
12 come into the Sheriff's department at the front desk?

13 A. Do what?

14 Q. Has there been any time over the last several years
15 besides the couple of instances that I have come to the
16 Sheriff's department that you have seen me?

17 A. Yes. You have come to the front asking for the sheriff
18 several times.

19 Q. Several times. Can you specify how many times?

20 A. Four or five times that I know of.

21 Q. Four or five times. You seem very sure that you saw me
22 on the night of the 31st. Is there any additional evidence
23 that, did you take any pictures, any license tag, any
24 pictures taken of me that would identify me being in that
25 vehicle in Shelby's Place?

26 A. I do not. My step mom tried to get your tag number but
27 you had a thing over the top of the tag so we were not able
28 to get the tag number.

29 Q. There was no tag taken down. There was no picture

1 identifying me being at that scene. There was just
2 speculation?

3 A. I saw you.

4 Q. Just speculation?

5 A. If that is what you want.

6 BY MR. REARDON: No further questions,
7 Your Honor.

8 RE DIRECT EXAMINATION BY MRS. KILPATRICK:

9 Q. I think you might have been cut off. I want to ask
10 this one follow up question. You said you saw him. You one
11 hundred percent knew that was Matthew Reardon?

12 A. Yes, ma'am.

13 BY THE COURT: Mrs. Frye, thank you. You
14 may step down. Any additional witnesses?

15 BY MRS. KILPATRICK: No, Your Honor.

16 BY THE COURT: Mr. Reardon, you may speak
17 now. Like I said you can essentially testify
18 on your behalf. Please come to the podium and
19 like I said you are testifying on your behalf
20 as to the allegations that you have violated
21 your probation. All right. You are
22 recognized.

23
24 BY MR. REARDON: Your Honor, I will start with the
25 incident on the 28th. I have literally tried to do
26 everything that this county has asked me. As unfair as I may
27 have thought the conditions may have been, I did the right
28 thing. In fact if the court will allow me to pull up my you
29 tube, I have private out on my you tube just in case that on

1 any occasion this came up I made sure to back up everything
2 in evidence. On the 28th of October I had it was-- there was
3 an incident regarding Marshall County. Holly Springs Police
4 Department that I had attempted to alert the Federal Bureau
5 of Investigations too. I specifically let the gentleman know
6 that I was on the phone with that I was banished from the
7 City of Oxford and I was trying to get an appointment time
8 because I did not want to waste my time driving nearly 20
9 miles from out of town to the FBI office for nobody to be
10 there to meet with me. He told me that they do not do
11 appointments. That if I were there between the hours I
12 believe he said 8 and 4 that the building was open and there
13 was somebody that could in fact sit down with me. He told
14 me, he advised if I could come within the next hour and a
15 half that that would be great. That that would be a perfect
16 time to come. I then got on the phone and alerted Deputy
17 Kandy Beavers of my presence needed in Oxford and at the FBI
18 office. Obviously I did not have any have an agent who I
19 would be sitting down with. She asked me who I would be
20 sitting down with. And asked me what it would be about and I
21 honestly, as I told her that in particular the details of the
22 investigation was not something that I felt needed to be made
23 privy to the Lafayette County Sheriff's department. I did
24 not know the name of the agent that I was going to be sitting
25 down with. I tried to offer as much information as details
26 as I could at the time. Upon arriving to the FBI office I
27 was told that there was no agent there. I told the lady that
28 the gentleman I spoke with over the phone told me to come up
29 there around that time. I then advised her that I would just

1 sit in my car out in the parking lot until there was an agent
2 there that could actually speak with me because I was advised
3 to come up there. Is there any water? I've got a dry mouth.
4 So I waited approximately two hours and it was a good solid
5 two hours in the parking lot. I went back in to the FBI
6 building, pressed the buzzer, advised that 2:45 in the
7 afternoon there were no agents here and there would be no
8 agents coming back for the rest of the day for which I stated
9 what a great use of tax dollars for me to be advised and
10 somebody could meet with me and then be told on a Friday at
11 2:45 that there would be no agent returning to the office. I
12 have all of that. I have it all documented. Audio. The
13 evidence that I have saved couldn't be any clearer. And what
14 I have. I am very shocked to see this brought up on a
15 supplemental narrative report and one, two violating I cannot
16 say I'm very much surprised given the series of events that
17 has transpired which have been listed out in a motion to
18 withdraw my guilty plea submitted on the 31st of this month.
19 It's definitely not the first time there has been foul play
20 that has occurred. In regards to the 31st, I don't have any
21 clue what Mrs. Frye is talking about. No clue whatsoever.
22 Which is why, a simple picture or even the plate, you know,
23 written down. Surely if she was that sure it was me you
24 would think that she would be easily be able to write down
25 the plate number or snap a picture simply just to prove
26 beyond all doubt my presence in that neighborhood. I deny it
27 in whole and as well as the accusation on the 28th because I
28 did exactly what this county asked me to do by letting
29 Kandace Beavers know that I needed to go up to the FBI

~~Reardon-statement~~

1 building to report an incident of police misconduct involving
2 the Holly Springs Police Department. Then after I left there
3 after being in the parking lot for two hours I called her
4 back at the sheriff's department. Was transferred to her.
5 Was told she was on bus duty. And I advised her I was going
6 to be going to the U S attorneys office because they are the
7 prosecuting arm where the FBI is investigative arm to
8 basically re address my being called up there and nobody
9 meeting with me. But that is it in a whole, Your Honor.

10 BY THE COURT: Let me ask you a question.

11 In your plea agreement that you signed, your
12 address is listed as 503 County Road 37, Water
13 Valley, Mississippi.

14 BY MR. REARDON: 371.

15 BY THE COURT: Excuse me. State your
16 address.

17 BY MR. REARDON: 503 County Road 371,
18 Water Valley, Mississippi, 38965.

19 BY THE COURT: Although that is within
20 Lafayette County.

21 BY MR. REARDON: It's right before
22 Anchor. It is just within the Lafayette
23 County, the county lines. I was given until
24 November 15 to move out of that address and so
25 I have adhered to everything this court has
26 asked me.

27 BY THE COURT: I wanted to make sure you
28 do not live in Shelby's Place. I wanted to be
29 clarified on that.

1 BY MR. REARDON: No, I don't live in
2 Shelby's Place.

3 BY THE COURT: You can be seated, Mr. Reardon.
4 Anything from the State?

5 BY MS. KILPATRICK: No.

6 BY THE COURT: Give me five minutes real
7 quick.

8 (SHORT RECESS WAS TAKEN)

9 We are here to consider the State's motion to revoke
10 the unsupervised probation for five years on Matthew Reardon
11 and his suspended sentence. The court has heard the evidence
12 of the State and heard a response. Cross examination of Mr.
13 Reardon. Part of the sentence and I think there was a
14 lengthy hearing held. I asked who the banishment portion of
15 the sentence and the reason for that. And it's a very
16 serious matter. And the allegations that the State has made
17 as to these two incidents. The court finds that it's by A
18 preponderance of the evidence it's more probable than not
19 that these two incidents refers to and the testimony from
20 Deputy Beavers and Mrs. Emily Frye did occur and that Mr.
21 Reardon was in fact in violation of the banishment order of
22 the sentence. Therefore-- and by a preponderance of the
23 evidence. Therefore based on this evidence you have in fact
24 violated the terms and conditions of your probation, Mr.
25 Reardon. Therefore your probation is revoked and your
26 suspended sentence is revoked at this time. If you have
27 evidence you can certainly admit it and we will keep the
28 record open for you to admit any evidence of you tube videos
29 and things of that nature.

1 BY MR. REARDON: It's right now set to
2 private because I didn't want to publicize the
3 call so I would have to log in.

4 BY THE COURT: Can you put it on a zip
5 drive, flash drive.

6 BY MR. REARDON: Well I can.

7 BY THE COURT: You can do that down there
8 at the jail. You will be allowed to do that
9 and submit it into evidence.

10 BY MR. REARDON: What is the process to
11 appeal this?

12 BY THE COURT: I can't give legal advice.
13 Okay. So Mrs. Kilpatrick, the court has
14 revoked the probation of Mr. Reardon and his
15 suspended sentence of five years based on the
16 evidence presented by the State. And I find
17 that it's more probable than not and by a
18 preponderance of the evidence this did occur
19 in violation of the banishment order in his
20 sentence. Does the State have a
21 recommendation?

22 BY MRS. KILPATRICK: Yes, Your Honor, the
23 State does have a recommendation. Of the five
24 years which he was committed to the
25 Mississippi Department of Corrections all five
26 of which were suspended in that September 30th
27 order the State would recommend that he be
28 sentenced to serve one year, not all. Just
29 one year of that five year sentence and re

1 suspend four years, Your Honor. And of course
2 that he would be let out and again the State
3 is fine with unsupervised as long as that
4 banishment clause stays in there which it is
5 certainly for his own good.

6 BY THE COURT: Okay. Based on the
7 recommendation of the State Mr. Reardon, the
8 court does hereby sentence you to five years
9 in the custody of the Mississippi Department
10 of Corrections with four years suspended
11 leaving you one year to serve. The four years
12 upon your release from MDOC custody will be
13 placed on four years of unsupervised
14 probation. The remainder of your sentence
15 will remain in place including the banishment
16 as well as other matters in there including
17 the cost of the court. Which I think we
18 determined to be \$592.50 cents. Anything
19 further?

20 BY MR. REARDON: Yes, sir, Your Honor.
21 The fact that I filed a motion to withdraw my
22 guilty plea.

23 BY THE COURT: The court has made a
24 decision and that is it.

25 BY MR. REARDON: So my motion doesn't
26 mean squat in this court?

27 BY THE COURT: I have addressed that
28 previously, Mr. Reardon. Thank you.

29 BY MR. REARDON: I would like to be

1 assigned counsel for purpose of an appeal.

2 This is corrupt. Your Honor, this is
3 absolutely corrupt.

4 BY THE COURT: If you want to file a
5 motion you are certainly entitled to do that.

6 BY MR. REARDON: You are a corrupt judge.
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COURT REPORTER'S CERTIFICATE

STATE OF MISSISSIPPI
COUNTY OF LAFAYETTE

I, Margaret B. Fair, one of the Official Court Reporters for the Third Circuit Court District of the State of Mississippi, do hereby certify that to the best of my skill and ability I have reported the trial had and done in the case of State of Mississippi vs. Matthew Reardon being No. Lk-194 on the docket of the Circuit Court of the Third Judicial District of Lafayette County, Mississippi, and that the above and foregoing pages contain a true, full and correct transcript of my stenographic notes and tape taken in said proceedings.

I do further certify that my certificate annexed hereto applies only to the original and certified transcript. The undersigned assumes no responsibility for the accuracy of any reproduced copies not made under my control or direction.

This the 13th day of June, 2023.


Margaret B. Fair
Official Court Reporter

COURT REPORTER'S FEE:
\$ 60.00